

26NNCP00399 26NNCP00399

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 26NNCP00399 Hearing Date: August 17, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PETITION

FOR ORDER TO ABATE SUBSTANDARD PREMISES AND APPOINTMENT OF RECEIVER

I. INTRODUCTION

On June 23, 2026, Petitioner City of San Gabriel ("Petitioner" or the "City") filed a petition for an order to abate substandard premises and appoint a receiver concerning the real property located at 122 E. Grand Avenue, San Gabriel, California (the "Subject Property"). On July 16, 2026, the City filed the operative First Amended Petition, seeking appointment of a receiver pursuant to Health and Safety Code section 17980.7 to abate alleged ongoing building and housing code violations at the Subject Property.

On July 17, 2026, the City dismissed Respondents Antonio D. Hernandez and Virginia Hernandez, as Co-Trustees of the Hernandez Family Trust dated January 30, 1984. No opposition was filed.

II. LEGAL STANDARD

If a building is maintained in a manner that violates certain provisions of the Health & Safety Code ("H&S"), the building standards published in the State Building Standards Code, or other rules, regulations or local ordinances, and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered, the enforcement agency may issue an order or notice to repair or abate. H&S §17980.6.

A receiver may be appointed in an action or proceeding in any case in which the court is empowered by law to appoint a receiver, including where it is necessary for the preservation of the property or rights of a party. CCP §564(a). Where a property owner fails to make repairs in accordance with a H&S section 17980.6 order within a reasonable time, the enforcement agency may seek the appointment of a receiver for the substandard building. H&S §17980.7(c). In determining whether to appoint a receiver, the court shall consider whether the owner has been afforded a reasonable opportunity to correct the conditions cited in the notice of violation. H&S §17980.7(c)(1).

III. ANALYSIS

The City seeks appointment of a receiver over the property located at 122 E. Grand Avenue, San Gabriel, California (the “Subject Property”). No opposition has been filed.

Here, the record supports the appointment of a receiver. The City has been attempting to obtain compliance at the Subject Property since August 2024. Over that period, the City conducted inspections, issued multiple notices of violation, granted extensions to allow the Owner and Occupant additional time to correct the violations, and ultimately issued administrative citations. (Ayub Decl., ¶¶ 3-17, Exhs. 3-16; Acosta Decl., ¶¶ 4-10, Exhs. 11-18.) Despite those efforts, the violations were not corrected.

On February 12, 2026, the City posted a Notice and Order to Abate or Repair (“N&O”) at the Subject Property and mailed the N&O to the Owner, Occupant, and lienholders. The N&O gave the responsible parties until March 13, 2026, to correct the violations. (Ayub Decl., ¶ 18, Exh. 19.) Among other things, the N&O identified unpermitted structures and improvements, lack of plumbing, hot and cold running water, and adequate heating, deficient smoke and carbon monoxide alarms, accumulated trash and debris, and a structure being used for habitation although it was not designed or intended for occupancy. (Ibid.)

The conditions were not corrected.

When the City inspected the Subject Property again on March 23, 2026, the violations remained and the conditions had worsened. (Ayub Decl., ¶ 19, Exh.

20.) The Owner had also not applied for an after-the-fact permit or demolition permit for the rear structure. (Id., ¶ 20.) Thereafter, on May 22, 2026, the City served a Notice of Intent to Seek Receiver on the Owner, Occupant, and persons with a recorded interest in the Subject Property. (Acosta Decl., ¶ 11, Exh. 21.)

Based on this record, the Court finds the conditions at the Subject Property substantially endanger the health and safety of the occupants and the public within the meaning of Health and Safety Code section 17980.6. The Court further finds that the City provided the required notice and a reasonable opportunity to correct the violations, but the violations remain unabated. Appointment of a receiver is therefore warranted under Health and Safety Code section 17980.7, subdivision (c).

The City nominates Jackson Wyche as receiver. Wyche is a licensed attorney and partner at Receivership Specialists and has worked on more than 250 receivership cases since 2020. He has also personally been appointed as a receiver or referee in 15 cases since June 2025. (Wyche Decl., ¶ 2.) Wyche also submits his resume detailing his qualifications and receivership experience. (Id., Ex. 22.) The Court finds Wyche has the capacity and expertise required by Health and Safety Code section 17980.7, subdivision (c)(2).

The Court therefore GRANTS the City's First Amended Petition and appoints Jackson Wyche as receiver over the Subject Property.

IV. ORDER

The Court GRANTS the City's First Amended Petition and appoints Jackson Wyche as receiver over the Subject Property.

City is to give notice.

Dated: August 17, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT